

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Monday, July 13, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, July 13, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
----------	---------------------

20CV-02472	Ramiro Ramos vs Javier Zambrano et al.
------------	--

Motion to Strike Cross Complaint

The motion to strike the cross-complaint filed by Cross-Complainant All Seasons Mechanical, Inc., is GRANTED WITH LEAVE TO AMEND.

Code of Civil Procedure section 436, subdivision (b) allows the court to strike any pleading not drawn or filed in conformity with the laws of this state. (Code. Civ. Proc. § 436, subd. (b).)

Other than small claims, a corporation is unable to represent itself in court and must be represented by an attorney. Here, All Seasons Mechanical, Inc., has been without representation since its attorney of record was relieved as counsel on March 8, 2024, which became effective on April 15, 2024.

As All Seasons Mechanical, Inc., is no longer represented by counsel, the cross-complaint is no longer maintained in conformity with the laws of this state.

Accordingly, the motion to strike is granted. As this may be cured by All Seasons Mechanical, Inc. obtaining counsel, the motion is granted with leave to amend.

Cross-Complainant All Seasons Mechanical, Inc. is to obtain counsel and file proof of representation within thirty (30) days of this court's order.

Failure to obtain counsel and provide proof of representation within thirty (30) days of this court's order may result in the cross-complaint being stricken without leave to amend.

22CV-01155

Estate of Devonea Graham, et al. vs County of Merced, et al.

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. On July 6, 2026, counsel informed the Court of their intent to file a dismissal the same day after the court hearing. No dismissal has been filed. Appear to show cause why the matter should not be dismissed pursuant to California Rules of Court, rule 3.1385 and Code of Civil Procedure section 664.6

23CV-00838

Maria Medina vs Moises Zaragoza, et al.

Motion to Bifurcate Issues at Trial

The motion to bifurcate the punitive damages issues from the liability and compensatory damages phase of trial is GRANTED.

For the first phase, the trier of fact will first decide liability, actual damages, and whether Plaintiff has proven malice, oppression, or fraud. Only if the trier of fact finds Plaintiff has proven malice, oppression, or fraud, will the trial advance to the second phase regarding the amount of punitive damages.

Defendant is ordered to file a proposed order consistent with this court's order within five (5) days.

24CV-06583

Alma Quintero Sanchez vs David Rodriguez

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. Appear to address the status of the conditional settlement for which notice was filed February 13, 2026, with an anticipated dismissal date of May 12, 2026, and show cause why the Court should not dismiss the matter, retaining jurisdiction for enforcement purposes pursuant to Code of Civil Procedure section 664.6. If there are no appearances, the matter may be dismissed by the Court pursuant to the settlement under California Rules of Court, rule 3.1385, as more than 45 days have passed since the date the settlement agreement conditions were to be completed.

Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure 871.26 And Request for Monetary Sanctions

Plaintiff's motion to compel initial disclosures pursuant to Code of Civil Procedure section 871.26 and request for monetary sanctions is DENIED.

As an initial matter, Code of Civil Procedure section 871.26 provides no mechanism in which a party may move to compel the initial disclosures. Section 871.26 only provides for monetary sanctions and evidentiary sanctions for repeated noncompliance. (See Code Civ. Proc. § 871.26, subd. (j).)

A plain reading of the statute shows the standard discovery procedures, including the compulsion provisions of the Civil Discovery Act, do not apply until mediation is concluded pursuant to Code of Civil Procedure section 871.26, subdivision (d). (See Code Civ. Proc. § 871.26, subd. (e). [“if the case is not resolved at the conclusion of mediation, standard discovery procedures . . . (commencing with Section 2016.010) . . . shall apply . . .”]) The court notes there is no evidence before this court regarding such meditation.

Further, this court finds there was no requirement that the initial document production by Defendant be verified. The verification requirement regarding initial disclosures is pursuant to Code of Civil Procedure section 2016.090. Section 2016.090 is only applicable if there has been a demand by one of the parties for initial disclosures. In contrast, the initial disclosure requirement of section 871.26 is mandatory and contains no verification requirement as found in section 2016.090, subdivision (a)(5).

Last, Defendant has provided admissible evidence that Defendant's mandatory initial document production, pursuant to section 871.26, subdivision (h), has been completed prior to the filing of this motion. Even assuming the February 2026 initial document production was late or incomplete, Defendant has shown good cause why there may have been a failure to fully comply with the document production requirement pursuant to section 871.26, subdivision (b).

Accordingly, Plaintiff's motion and request for monetary sanctions is denied.

Order to Show Cause Re: Dismissal - Notice of Settlement

VACATED. This matter is set for a status conference to confirm deposit of funds into blocked accounts pursuant to the minors' compromises on November 2, 2026, at 8:15 a.m. in Courtroom 8.

26CV-03475 Vanessa Mercado vs Patricia Navarro

Order to Show Cause Re: Restraining Order

Appearance required. Respondent filed a response to the request for a restraining order with a proof of service on July 9, 2026.

26CV-03496 Jasmine Singh vs Isidro Delgado-Vega

Order to Show Cause Re: Restraining Order

Appearance required. There is no proof of service of the notice of hearing and temporary orders on Respondent on file with the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Short Cause Court Trials
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, July 13, 2026
1:30 pm

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
----------	---------------------

24CV-03397	Jane Doe vs Ariel Dear Foundation, et al.
------------	---

Default

VACATED. Matter is set for case management conference on December 14, 2026, at 10:00 a.m. in Courtroom 8. On June 1, 2026, counsel was ordered to file separate judgments for each defendant and a proof of service as to damages. Counsel has failed to do so and the Court declines to continue the prove-up hearing again without all necessary paperwork on file. The clerk's office is ordered to send notice of the CMC to all parties.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, July 13, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
25CV-02761	Abdullah Alagi vs. Auto Resources Inc Order of Examination (Small Claims) – Auto Resources, Inc. Appearance required.
26CV-00343	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)] Motion to Set Aside Court Judgment Appearance required.
26CV-01966	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)] Court Trial: Unlawful Detainer Appearance required.

26CV-02080 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-02213 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Status Review of Settlement

Appearance required.

26CV-02797 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-02944 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03310 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Demurrer to Complaint

Appearance required. An opposition and reply to an opposition may be made orally at the time of the hearing. (Code Civ. Proc., § 1170, subd. (c).)
